

COMMITTEE ON JUDICIARY AND ELECTIONS
SENATE AMENDMENTS TO S.B. 1038
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 16, chapter 4, article 1, Arizona Revised
3 Statutes, is amended by adding section 16-407.04, to read:

4 16-407.04. Cast vote record; public record; definition

5 ~~[A. NOTWITHSTANDING ANY OTHER LAW, WITHIN ONE HOUR AFTER THE~~
6 ~~CLOSING OF THE POLLS FOR EACH ELECTION, THE COUNTY RECORDER SHALL MAKE~~
7 ~~AVAILABLE AS A PUBLIC RECORD THE FOLLOWING:~~

8 ~~1. THE NAME, VOTER IDENTIFICATION NUMBER AND POLITICAL PARTY~~
9 ~~REGISTRATION, IF ANY, OF EVERY PERSON WHO VOTED IN THAT ELECTION.~~

10 ~~2. THE CAST VOTE RECORD IN A SORTABLE FORMAT.~~

11 ~~B. THE COUNTY RECORDER SHALL NOT RANDOMIZE OR OTHERWISE ALTER THE~~
12 ~~ORIGINAL FILES.]~~

13 [A. WITHIN FORTY-EIGHT HOURS AFTER THE COUNTY BOARD OF SUPERVISORS
14 TRANSMITS THE COUNTY CANVASS TO THE SECRETARY OF STATE, THE BOARD OF
15 SUPERVISORS OR THE OFFICER IN CHARGE OF ELECTIONS SHALL TRANSMIT THE CAST
16 VOTE RECORD TO THE SECRETARY OF STATE IN A SORTABLE FORMAT. THE
17 TRANSMITTED CAST VOTE RECORD SHALL BE UNALTERED EXCEPT THAT, FOR
18 PRECINCTS, PRECINCT SPLITS AND BALLOT STYLES THAT CONTAIN FEWER THAN
19 TWENTY-FIVE REGISTERED VOTERS, THE BOARD OF SUPERVISORS OR OFFICER IN
20 CHARGE OF ELECTIONS SHALL INCLUDE ONLY THE NUMBER OF VOTERS AND THE NUMBER
21 OF CAST VOTE RECORDS.

22 B. THE BOARD OF SUPERVISORS OR OFFICER IN CHARGE OF ELECTIONS SHALL
23 NOT RANDOMIZE OR OTHERWISE ALTER THE ORIGINAL FILES.]

24 C. THE INFORMATION AND RECORDS PRESCRIBED BY SUBSECTION A OF THIS
25 SECTION CONSTITUTE A PUBLIC RECORD.

Senate Amendments to S.B. 1038

1 [D. FOR THE PURPOSES OF THIS SECTION, "CAST VOTE RECORD" MEANS AN
2 ELECTRONIC RECORD OF THE VOTERS' SELECTIONS AS CAPTURED BY A TABULATION
3 DEVICE FROM A BALLOT OR A BALLOT IMAGE THAT CANNOT BE LINKED TO A SPECIFIC
4 VOTER.]

5 Enroll and engross to conform

6 Amend title to conform

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